

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #
Date of filing:

-----X
ANDRE MORRIS, DUANE TIMMS, JR., and ANDREW
COLEY,

Plaintiffs designate New York
County as the place of trial

Plaintiffs,

-against-

Basis of the venue is the Locus
of Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
TRISTIAN LATTIMORE-Shield No. 10021 and JOHN
DOES-Police Officers as yet unidentified,

SUMMONS

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER TRISTIAN LATTIMORE-
Shield No. 10021
Tax ID # 954047
c/o New York City Police Department-
Patrol Borough Manhattan South
230 East 21st Street
New York, New York 10010

Dated: Brooklyn, New York
May 28, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANDRE MORRIS, DUANE TIMMS, JR., and ANDREW
COLEY,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TRISTIAN LATTIMORE-Shield No. 10021 and JOHN
DOES-Police Officers as yet unidentified,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ANDRE MORRIS**

1. That at all times hereinafter mentioned, plaintiff, ANDRE MORRIS, was and still is a
resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, plaintiff, DUANE TIMMS, JR., was and still is
a resident of the County of Queens, City and State of New York.
3. That at all times hereinafter mentioned, plaintiff, ANDREW COLEY, was and still is a
resident of the County of Westchester, State of New York.
4. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New
York.
5. That the defendant, THE CITY OF NEW YORK, maintains a police force known as
the NEW YORK CITY POLICE DEPARTMENT.
6. That prior hereto on August 24, 2018, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff, ANDRE MORRIS' demands for adjustment or

payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

7. That prior hereto on August 23, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff, DUANE TIMMS, JR.'s demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

8. That prior hereto on August 23, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff, ANDREW COLEY's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

9. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, ANDRE MORRIS, was held on March 6, 2019.

10. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, DUANE TIMMS, JR., was held on October 26, 2018.

11. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, ANDREW COLEY, was held on January 3, 2019.

12. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

13. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ANDRE MORRIS, was lawfully present at or about the intersection of West 46'

Street and 7th Avenue, in the County, City and State of New York.

14. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ANDRE MORRIS, was assaulted, battered and doused with pepper spray/mace by defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

15. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and the use of pepper spray/mace was performed knowingly, intentionally and willfully.

16. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and use of pepper spray /mace upon the plaintiff, ANDRE MORRIS, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

17. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

18. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

19. By the reason of the foregoing, the plaintiff ANDRE MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ANDRE MORRIS**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, doused pepper spray/mace and violated the civil rights of the plaintiff, ANDRE MORRIS.

22. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

23. By the reason of the foregoing, the plaintiff, ANDRE MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF ANDRE MORRIS**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

26. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ANDRE MORRIS.

27. That as a result of said intentional and negligent acts, the plaintiff, ANDRE MORRIS, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

28. By reason of the foregoing, the plaintiff, ANDRE MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ANDRE MORRIS**

29. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

31. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, ANDRE MORRIS.

32. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

33. By reason of the foregoing, plaintiff, ANDRE MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ANDRE MORRIS**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff. ANDRE MORRIS.

36. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

37. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

38. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

39. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

40. As a direct and proximate result of this unlawful conduct, the plaintiff, ANDRE MORRIS, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ANDRE MORRIS**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

43. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

44. By the reason of the foregoing, the plaintiff, ANDRE MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DUANE TIMMS, JR.**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DUANE TIMMS, JR., was lawfully present at or about the intersection of West 46th Street and 7th Avenue, in the County, City and State of New York.

47. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DUANE TIMMS, JR., was assaulted and battered and doused with pepper spray/mace by defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

48. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and the use of pepper spray/mace was performed knowingly, intentionally and willfully.

49. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and the

use of pepper spray/mace upon the plaintiff, DUANE TIMMS, JR., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

50. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the assault, battery and the use of pepper spray/mace on the plaintiff was without probable cause and was not the result of an appropriate arrest.

51. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

52. By the reason of the foregoing, the plaintiff, DUANE TIMMS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DUANE TIMMS, JR.**

53. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "52" inclusive with the same force and effect as if more fully set forth at length herein.

54. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, doused with pepper spray/mace and violated the civil rights of the plaintiff, DUANE TIMMS, JR.

55. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

56. By the reason of the foregoing, the plaintiff, DUANE TIMMS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF DUANE TIMMS, JR.**

57. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "56" inclusive with the same force and effect as if more fully set forth at length herein.

58. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

59. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DUANE TIMMS, JR.

60. That as a result of said intentional and negligent acts, the plaintiff, DUANE TIMMS, JR., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

61. By reason of the foregoing, the plaintiff, DUANE TIMMS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DUANE TIMMS, JR.**

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No.10021 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to

cover up the aforesaid and initiate a prosecution in bad faith.

64. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, DUANE TIMMS, JR.

65. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

66. By reason of the foregoing, plaintiff, DUANE TIMMS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DUANE TIMMS, JR.**

67. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "66" inclusive with the same force and effect as if more fully set forth at length herein.

68. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, DUANE TIMMS, JR.

69. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

70. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

71. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

72. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

73. As a direct and proximate result of this unlawful conduct, the plaintiff, DUANE TIMMS, JR., sustained the damages hereinbefore alleged.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DUANE TIMMS, JR.**

74. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

76. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

77. By the reason of the foregoing, the plaintiff, DUANE TIMMS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ANDREW COLEY**

78. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "77" inclusive with the same force and effect as if more fully set forth at length herein.

79. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ANDREW COLEY, was lawfully present at or about the intersection of West 46th Street and 7th Avenue, in the County, City and State of New York.

80. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DUANE TIMMS, JR., was assaulted, battered and doused with pepper spray/mace by defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

81. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and the use of pepper spray/mace was performed knowingly, intentionally and willfully.

82. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and the use of pepper spray/mace upon the plaintiff, ANDREW COLEY, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

83. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the assault, battery and the use of pepper spray/mace on the plaintiff was without probable cause and was not the result of an appropriate arrest.

84. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

85. By the reason of the foregoing, the plaintiff, ANDREW COLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ANDREW COLEY**

86. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "85" inclusive with the same force and effect as if more fully set forth at length herein.

87. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, douse pepper spray/mace and violated the civil rights of the plaintiff, ANDREW COLEY.

88. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

89. By the reason of the foregoing, the plaintiff, ANDREW COLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLECTION OF EMOTIONAL
DISTRESS ON BEHALF OF ANDREW COLEY**

90. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "89" inclusive with the same force and effect as if more fully set forth at length herein.

91. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their

actions and caused severe emotional distress to the plaintiff through their actions.

92. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ANDREW COLEY.

93. That as a result of said intentional and negligent acts, the plaintiff, ANDREW COLEY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

94. By reason of the foregoing, the plaintiff, ANDREW COLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ANDREW COLEY**

95. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "94" inclusive with the same force and effect as if more fully set forth at length herein.

96. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No.10021 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

97. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TRISTIAN LATTIMORE-Shield No.10021 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, ANDREW COLEY.

98. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

99. By reason of the foregoing, plaintiff, ANDREW COLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ANDREW COLEY**

100. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "99" inclusive with the same force and effect as if more fully set forth at length herein.

101. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff. ANDREW COLEY.

102. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

103. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

104. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

105. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

106. As a direct and proximate result of this unlawful conduct, the plaintiff, ANDREW COLEY, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ANDREW COLEY**

107. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "106" inclusive with the same force and effect as if more fully set forth at length herein.

108. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

109. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER TRISTIAN LATTIMORE-Shield No. 10021 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

110. By the reason of the foregoing, the plaintiff, ANDREW COLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

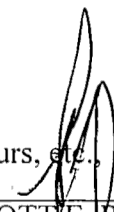
WHEREFORE, plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ANDRE MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause

of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, DUANE TIMMS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, ANDREW COLEY, demands judgment both compensatory and exemplary in an amount exceeding the

jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
May 28, 2019

Yours, etc.,



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
ANDRÉ MORRIS
DUANE TIMMS, JR.
ANDREW COLEY
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Brooklyn, New York 11241
(718) 522-1020
File No.: 18DT07-14

ATTORNEY'S VERIFICATION BY AFFIRMATION

SCOTT E. RYNECKI, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
May 28, 2019



SCOTT E. RYNECKI, ESQ.